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CASE #	CASE NAME	HEARING NAME
CVME2606892	RUZICH VS AVILA	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

2.

CASE #	CASE NAME	HEARING NAME
CVMV2407320	BUENO VS PARAMO-GONZALEZ	MOTION FOR SUMMARY JUDGMENT ON CROSS-COMPLAINT

Tentative Ruling:

The Court GRANTS the motion as to the fourth cause of action.

The Court DENIES the motion as to the first, second, third, fifth, and sixth causes of action. In terms of Plaintiff/Cross-Defendant Bueno's Objections to the Opposition, the Court declines to rule on objections 1, 3, 4, 8, 10, 11, 13, 14; and overrules objections 2, 5, 6, 7, 9, 12, 15, 16, 17, 18.

Plaintiff and Cross-Defendant Bueno brings the instant motion for summary judgment/adjudication as to the Cross-Complaint. Bueno argues the breach of oral contract claim is barred by the statute of frauds because the agreement lacks sufficiently definite and material terms. Bueno argues the claim for specific performance fails because no writing exists identifying the interest in the real property to be conveyed or the essential terms of the alleged transaction. Bueno argues there is no evidence to support the fraud causes of action against him.

In Opposition, Paramo-Gonzalez relies on her own declaration to establish an oral contract between the parties. The Opposition argues there are triable issues of material fact as to whether the parties had an implied agreement under *Marvin v. Marvin* (1976) 18 Cal.3d 660. Paramo-Gonzalez argues the ultimate determination of the claims in the Cross Complaint will require an analysis of witness credibility which cannot be made on a motion for summary judgment.

In Reply, Bueno provides a table detailing the discrepancies between Paramo-Gonzalez's Opposition to the instant motion and her deposition testimony. Bueno relies on Paramo-Gonzalez's deposition testimony and reasserts the arguments made in the initial motion. Bueno argues Cross-Complainant has not demonstrated any triable issues of material fact.